

**DEPARTMENT THREE
JUDGE STEPHEN GIZZI
707-207-7303
TENTATIVE RULINGS SCHEDULED FOR
TUESDAY, DECEMBER 23, 2025**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**OLIVIA FAITH HOWARD v. KARL ROBERT SCHEIRER
Case No. CU24-04825**

- 1) Motion for an Order that the Truth of the Matters Specified in Requests for Admission Set One to Defendant Karl Robert Scheirer and Request for Sanctions
- 2) Motion to Compel to Defendant Karl Robert Scheirer to Respond to Form and Special Interrogatories, Set One and Request for Sanctions
- 3) Motion to Compel Defendant Karl Robert Scheirer to Respond to Request for Production of Documents Set One and Request for Sanctions

TENTATIVE RULING

The motions to compel and deem matters admitted and any associated sanctions are denied. It appears that all or a substantial portion of the responses and verifications have been provided by the new defense counsel. The Court finds that communications between a senior partner and a paralegal not authorized by law to make legal decisions on behalf of a client, do not constitute a proper meet and confer. The absence of a proper meet and confer between the parties alone provides the basis of denial for the motions. In addition, considering the totality of circumstances, the good faith efforts of defense counsel, and the lack of prejudice to plaintiff, denial is proper.

The parties are to appear to discuss rescheduling the mandatory settlement conference, any remaining discovery components that are absent and the withdrawal of the additional discovery motions.

SHAWTIANA HICKS v. MARATHON STAFFING SOLUTIONS, INC. and JOHN STEWART COMPANY
Case Nos. FCS059015, FCS059546

JOHN STEWART's Demurrers to MARATHON's Second Amended Cross-Complaints

TENTATIVE RULING

Cross-Defendant JOHN STEWART COMPANY ("JOHN STEWART") demurs to Cross-Complainant MARATHON STAFFING SOLUTIONS, INC.'s ("MARATHON") second amended cross-complaint in case FCS059015 presenting causes of action for equitable indemnity and declaratory relief. MARATHON alleges that JOHN STEWART is responsible for Plaintiff SHAWTIANA HICKS's damages stemming from wage and hour violations as alleged in her class action complaint.

JOHN STEWART simultaneously demurs to MARATHON's second amended cross-complaint alleging the same causes of action with regard to Plaintiff's representative action under the Private Attorneys General Act in FCS059546. The second amended cross-complaints and demurrers thereto are essentially identical. The court's below ruling applies equally to the demurrer in FCS059015 and the demurrer in FCS059546.

Legal Standard. "The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint is sufficient if it alleges ultimate rather than evidentiary facts, but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 551 at fn. 5 [ultimate facts sufficient].) The Court "assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Request for Judicial Notice. Matters subject to judicial notice may support a demurrer under Code of Civil Procedure section 430.30, subdivision (a). JOHN STEWART requests judicial notice of the parties' staffing agreement. If there is and can be no factual dispute about the contents of a written agreement it may be the subject of judicial notice under Evidence Code section 452, subdivision (h). (*Performance Plastering v. Richmond American Homes of California, Inc.* (2007) 153 Cal.App.4th 659, 666 at fn. 2.) There is no dispute about the contents of this document and it is relevant,